

TERMS AND CONDITIONS FOR ISSUING AND USING CREDIT CARDS AT TECHCOMBANK

1. DEFINITIONS AND DISCUSSED WORDS

- 1.1 Definitions: The terms used in the Terms and Conditions for issuing and using of this card shall be construed as follows:
- 1.1.1 **"Terms and Conditions"**: means the Terms and Conditions on issuance and use of credit cards at Techcombank (applicable to individual customers).
- 1.1.2 **"Credit card issuance and use contract"**: includes the proposal contract on credit card issuance and use at Techcombank; Terms, conditions and amended and supplemented documents from time to time.
- 1.1.3 **"Techcombank"**: means the Joint Stock Commercial Bank for Technology and Commerce of Vietnam, which is a credit institution that issues and pays credit cards in accordance with the regulations of the State Bank of Vietnam and the International Credit Corporation.
- 1.1.4 **"Cardholder"**: means an individual who is provided with a Card by Techcombank for use according to the granted credit limit, with a name and signature on the Card. The Cardholder includes the Primary Cardholder and the Supplementary Cardholder (if any).
The cardholder is the individual who signed the agreement on the use of the Card with Techcombank and is obliged to perform this agreement.
Supplementary cardholder means an individual who is allowed to use the card by the primary cardholder and the primary cardholder commits in writing to perform all obligations arising related to the use of the card under these Terms and Conditions.
- 1.1.5 **"Credit Card/Card"**: within the scope of the Terms, this condition shall be construed as all types of credit cards issued by Techcombank.
- 1.1.6 **"Co-branded credit card"**: means a card that is simultaneously branded by a card switching organization in Vietnam and a brand of an international card organization or a card switching organization of another country.
- 1.1.7 **"Linked Credit Card"** means a type of credit card issued by Techcombank on the basis of the cooperation agreement between Techcombank and the Partner from time to time.
- 1.1.8 **"DreamCard Credit Card"**: is a type of credit card issued by Techcombank.
- 1.1.9 **"Insured credit cards"**: are credit cards that the primary cardholder is given an insurance policy by Techcombank according to the insurance company's product. The list of insured credit cards will be specifically announced by Techcombank in the content section of that credit card product on Techcombank's website from time to time.
- 1.1.10 **"Primary cardholder of an insured credit card"**: means the primary cardholder of the insured credit cards and is insured by Techcombank and the Insurance Company.
- 1.1.11 **"Account"**: means the Cardholder's account opened by Techcombank and manages the use of the Credit Limit. The Supplementary Cardholder shares the same account as the Primary Cardholder.
- 1.1.12 **"Card Transaction"**: means a transaction in which the Cardholder uses the Card to deposit, withdraw cash, pay for goods, services or use other permitted services provided by Techcombank or other Card Payment Institutions.
- 1.1.13 **"Cardholder identification number" or "PIN" or "other electronic transaction confirmation method"**: means the cardholder's personal password/online card payment transaction confirmation method provided by Techcombank or initiated by the customer depending on Techcombank's regulations from time to time and used in some types of card transactions to authenticate the cardholder. This code is the responsibility of the Cardholder to keep it confidential. In electronic transactions with Techcombank, the

cardholder's use of the cardholder identification number or other methods as prescribed from time to time is considered as the method of identifying the cardholder and affirming the cardholder's approval of the data message in the electronic transaction. The PIN is provided to the Cardholder by (i) directly at the transaction counter or (ii) sent by post to the Cardholder's registered address, or (iii) provided via e-Banking service channels, including but not limited to via SMS sent to the Cardholder's mobile phone number registered with Techcombank or via F@st-ibank service, F@st Mobile, Techcombank Mobile that the Cardholder participates in (iv) is initiated by the Customer on the e-Banking service channels.

- 1.1.14 **"Card Validity Period"**: means the period during which the Cardholder is allowed to use the Card.
- 1.1.15 **"Card Expiration Date"**: means the last day of the month in which the card expires printed on the Card.
- 1.1.16 **"Overdue transfer date"**: means the day immediately after the payment due date that the Cardholder has not paid or paid an amount less than the Minimum Debt Repayment Amount.
- 1.1.17 **"International Card Organization"**: means an organization established in a foreign country in accordance with the provisions of foreign law, has an agreement with Techcombank and other related parties to cooperate in issuing and paying cards with the card issuer code issued by the International Card Organization in accordance with the provisions of Vietnamese law and international commitments.
- 1.1.18 **"Credit Limit"**: means the maximum credit value that the Cardholder is allowed to use by Techcombank in a credit cycle.
- 1.1.19 **"Credit Cycle"**: means the period from the time the Cardholder commences the use of the Credit Limit until the Cardholder repays the entire balance to restore the full Credit Limit.
- 1.1.20 **"Statement Period"**: means the period of time for Techcombank to make Statements, calculated from the Day after the Statement Date of the preceding period to the end of the Statement Date of the current period.
- 1.1.21 **"Statement"**: means a list detailing the arising in the Statement Period (payments, cash withdrawals with fees and interest incurred, debt repayments), period-ending balance, minimum debt repayment level, payment due date and other information. The statement shall be sent to the Cardholder after the Statement Date as a basis for debt repayment. The form of sending a statement to the Cardholder depends on the Cardholder's registration and Techcombank's regulations from time to time.
- 1.1.22 **"Statement Date"**: means the date on which Techcombank makes a Statement and is prescribed by Techcombank.
- 1.1.23 **"Payment due date"**: means the last day on which the Cardholder must pay to Techcombank the expenses and fees and interest incurred in the Statement Period according to Techcombank's regulations.
- 1.1.24 **"Minimum Debt Repayment Level"** means the minimum amount that the Cardholder must pay to Techcombank in each Statement Period as prescribed by Techcombank.
- 1.1.25 **"Outstanding Debt"**: means the amount of money owed by the Cardholder to Techcombank at any time arising from the issuance and use of the Card.
- 1.1.26 **"Balance at the end of the period"**: The amount of money owed by the Cardholder to Techcombank as of the end of the Statement Date.
- 1.1.27 **"Collateral"**: means a deposit, valuable paper or other asset that meets Techcombank's regulations, which is accepted by Techcombank as collateral for the use of the Cardholder's Credit Limit and is not used for payment in statement periods.
- 1.1.28 **"Insurance company"**: means a company that provides insurance products in accordance with the provisions of Vietnamese law.
- 1.1.29 **"Insurance Product"**: means a product provided by the Insurance Company to Techcombank in accordance with the insurance rules approved and licensed by the Ministry of Finance, and purchased by Techcombank as a gift to the Primary Cardholder of the insured credit card. The purchase of insurance

products of a specific insurance company by Techcombank to give to the Primary Cardholder of the insured credit card will be announced by Techcombank on Techcombank's official website at each specific time.

- 1.1.30 **"Transaction processing date of the International Card Organization"**: means the date on which the International Card Organization processes transactions transferred by card-accepting units to the system of the International Card Organization.
- 1.1.31 **"Request via Call Center"**: means the main cardholder's request for assistance through the Call Center, whereby the main cardholder is responsible for correctly answering the cardholder's authentication questions according to Techcombank's regulations to be processed by the call center. Techcombank has the right to process the request of an individual calling the Call Center if the individual correctly answers the password of the telephone transaction in accordance with Techcombank's regulations and Techcombank is exempt from responsibility for processing this request in case the Cardholder discloses the password of the Cardholder's telephone transaction to a third party.
- 1.1.32 **"Call Center"**: Techcombank's 24/7 Customer Service Call Center and any other telephone number/email/electronic means serving the Customer related to the issuance and use of Techcombank's card.
- 1.1.33 **"Registered Account"** means the Cardholder's current account opened at Techcombank and is used by the Cardholder to register for automatic debit.
- 1.1.34 **"Transaction password via phone/other electronic methods"**: is a set of authentication questions for the Cardholder according to Techcombank's regulations in case the Cardholder requests help via the Call Center.
- 1.1.35 **"CVV2/CVC"**: is a code to authenticate the Cardholder when making payment transactions with the Card on the Internet.
- 1.1.36 **"Partner"**: means a unit that has a cooperation agreement with Techcombank to develop affiliated credit card products.
- 1.1.37 **"Quick Response Code (QR Code)"**: is the use of QR Code by Cardholders to pay for goods and services with Cards for Merchants, including QR Code from Merchant-Presented QR Code and QR Code from Consumer-Presented QR Code.

The terms in these Terms and Conditions, if not explained herein, will comply with the definitions in Circular 18/2024/TT-NHNN regulating bank card activities of the State Bank and documents amending, supplementing and replacing Circular No. 18/2024/TT-NHNN.

1.2 Acronyms:

- 1.2.1 **"PIN"**: Personal Identification Number
- 1.2.2 **"ATM"**: Automated Teller Machine
- 1.2.3 **"Merchants"**: Merchants accepting cards
- 1.2.4 **"International Card Organization"**: International Card Organization
- 1.2.5 **"CI"**: Card payment organization
- 1.2.6 **"Fixed assets"**: Collateral
- 1.2.7 **"HMTD"**: Credit limit

2. PRIMARY AND SUPPLEMENTARY CARDS

- 2.1 Techcombank reserves the right to stipulate the maximum number of supplementary cards that the Primary Cardholder may issue at any given time. This regulation is publicly announced by Techcombank on Techcombank's official website.
- 2.2 If the Primary Cardholder is the person who is used by the guarantor, the Primary Cardholder is not allowed to issue a supplementary card without the approval of the guarantor.

- 2.3 The Primary Cardholder and the Supplementary Cardholder(s) share the same HMTD issued by Techcombank to the Primary Cardholder and are jointly responsible for paying the Balance to Techcombank upon request. In the event that the Primary Cardholder is unable to pay the Outstanding Balance, the Supplementary Cardholder(s) shall be responsible for paying the entire Outstanding Balance and vice versa.
- 2.4 The transaction of the Primary Cardholder and the Supplementary Cardholder(s) is shown on the same Statement and is sent to the Primary Cardholder for payment.
- 2.5 The Primary Cardholder and the Supplementary Cardholder(s) are jointly and severally responsible and each person is personally responsible for the performance of these Terms and Conditions. The inability of the Primary Cardholder to perform its obligations under these Terms and Conditions for any reason and under no circumstances shall it preclude the Supplementary Cardholder(s) from performing these Terms and Conditions. In case the Primary Cardholder or Supplementary Cardholder is unable to perform these Terms and Conditions, the remaining Cardholder(s) shall be responsible for performing the obligations of all Cardholders to Techcombank.
- 2.6 In case the Cardholder dies, goes missing, or loses his/her acting capacity, the implementation of these Terms and Conditions shall comply with the provisions of law.
- 2.7 The Primary Cardholder has the right to request Techcombank to stop providing Card services to the Supplementary Cardholder in writing or notify via Techcombank's website. If the use of the Primary Cardholder's Card is terminated or these Terms and Conditions are terminated, the use of the Supplementary Cardholder's Supplementary Card shall be terminated accordingly. The Supplementary Cardholder has no right to request the termination of the use of the Primary Card as well as any other requirements related to the validity of these Terms and Conditions.
- 2.8 The(s) The Supplementary Cardholder agrees to authorize the Primary Cardholder on behalf of the Supplementary Cardholder(s) to notify Techcombank of the loss of the Card, reissue the credit card to replace the expired credit card, receive the Card, receive the PIN and activate the Supplementary Cardholder's Card and other assistance requests (if any).

3. SCOPE OF USE OF THE CARD

- 3.1 The card is used to pay for goods, services, cash deposits, withdrawals and other authorized services from the ATM system and card acceptance system of Techcombank and other banks whose card system is connected to Techcombank's card system in the form of direct or indirect connection through one or several electricity clearing organizations card transactions.
- 3.2 The Cardholder may also use the Cardholder's information and through the use of Cardholder authentication factors such as PIN number and/or CVV2/CVC number/other electronic transaction confirmation method to perform MOTO transactions, internet transactions and other transactions under registration with Techcombank (the registration to use these transactions is subject to the provisions of the Techcombank from time to time):
- MOTO (Mail Order/Phone Order) transaction is a transaction in which the Cardholder uses the Card's information to order goods and services from the Cardholder via phone or email or other media. In particular, the Cardholder and/or Cardholder are not required to be present in person at the Merchant.
 - Card transaction on the internet: is a transaction in which the Cardholder uses the information of the Card to order goods and services via the internet.
- The Cardholder is fully aware of the risks and is responsible for the above transactions, and is responsible for the confidentiality of the Cardholder's authentication factors.

4. ISSUANCE FEES, CARD USAGE FEES AND EXCHANGE RATES

- 4.1 **Card issuance fee (on the basis of the new Credit Card issuance and use contract):** is the fee payable by the Cardholder when registering for card issuance on the basis of the card issuance and use contract and accepted by Techcombank.
- 4.2 **Card type/card class change fee (keeping the current credit card issuance and use contract):** is the fee payable by the Cardholder when Techcombank accepts the cardholder's request to change the card type/card class but does not change the terms and conditions on issuance and use of the card in effect.
- 4.3 **Card reissuance fee (due to theft, mispossession, etc.):** is the fee payable by the Cardholder when the Cardholder reissues the Card due to theft, misappropriation, etc. and do not change the terms and conditions on issuance and use of the Card that are currently in effect.
- 4.4 **Express issuance service fee (applicable area will be prescribed by Techcombank from time to time):** is the fee payable by the Cardholder (excluding related issuance fees) when the Cardholder requests to obtain the Card within 3 working days from the date the Cardholder completes the issuance procedures and the Cardholder's application for issuance of an international credit card is Techcombank accepts.
- 4.5 **Annual fee (collected annually, based on the Card Validity Period):** is the annual fee payable by the Cardholder to maintain the use of the Card.
- 4.6 **Tracing and complaint fee:** is the fee payable by the Cardholder when a dispute related to the use of the Card is brought to the mediation/arbitration panel of the International Card Organization and the mediation/arbitration panel of the International Card Organization adjudicates/awards the Customer losing the lawsuit.
- 4.7 **Cash withdrawal fee:** is the fee payable by the Cardholder when making withdrawal transactions at ATMs or at merchants authorized to provide cash withdrawal services. This fee is calculated on the transaction amount and the fee collected by the CI (if any) according to the regulations of the CI.
- 4.8 **Foreign currency transaction fee (applicable to transactions other than VND):** is the fee payable by the Cardholder when making transactions in foreign currency. This fee is calculated on the transaction amount and the fee collected by the credit institution (if any) according to the regulations of the credit institution
- 4.9 **Overseas local currency transaction fee:** is the fee payable by the Cardholder when the Cardholder makes transactions in local currency (VND) at merchants with country codes other than Vietnam based on the information sent by the paying bank. This fee is calculated on the transaction amount and the fee collected by the CI (if any) according to the regulations of the CI.
- 4.10 **Fee for notification of theft or loss of card:** is the fee payable by the Cardholder when notifying the Cardholder (in writing or via the Call Center) of the theft or loss of the Card.
- 4.11 **Fee for issuance of a copy of Statement on Request:** is the fee payable by the Cardholder when the Cardholder requests an additional copy of the written Statement in addition to the original one that Techcombank has sent to the Cardholder every month.
- 4.12 **Fee for issuance of copy of transaction invoice:** is the fee payable by the Cardholder when the Cardholder requests a copy of the transaction invoice in addition to the invoice received by the Cardholder at the Merchant.
- 4.13 **Credit Card information confirmation fee as required (Credit limit confirmation, transaction information confirmation, etc.):** is the fee payable by the Cardholder when the Cardholder requests Techcombank to confirm in writing information related to the Credit Card, Credit Card Transaction.
- 4.14 **Credit Limit Change Fee:** is the fee payable by the Cardholder when the Cardholder requests to increase or decrease the Credit Limit but does not change the Card tier and is accepted by Techcombank.
- 4.15 **Fee for changing the form of security for card issuance:** is the fee payable by the Cardholder when the Cardholder requests to change the form of security for the issuance of the Card from the form with fixed assets to the form without fixed assets or vice versa and is accepted by Techcombank.

- 4.16 **Collateral change fee:** A fee payable by the Cardholder when the Cardholder requests a change of fixed assets and is accepted by Techcombank.
- 4.17 **Late Payment Fee:** is a fee payable by the Cardholder when the Cardholder fails to pay or pays an amount less than the Minimum Repayment Amount before the Payment Due Date. This fee is calculated on the Unpaid Minimum Repayment Amount.
- 4.18 **Other fees** (if any) are in accordance with Techcombank's regulations and are publicly announced at Techcombank's head office and/or on Techcombank's website.
- 4.19 **Exchange rate:** Transactions with Visa credit cards from 06/07/2024 will be converted into VND at an exchange rate equivalent to Techcombank's transfer rate on the date of transaction processing of the International Credit Card (the principle of applying the exchange rate may change according to Techcombank's internal regulations from time to time). Transactions with Visa credit cards before 06/07/2024 and transactions with credit cards of the remaining international institutions will be converted into Vietnamese dong at the exchange rate of the international institution on the date of processing the transaction of the international institution
- The fee is applied according to the Fee Schedule issued by Techcombank from time to time, which is publicly announced at Techcombank's head office and/or on Techcombank's website.
- The time from the notification and provision of information about the above-mentioned fees to the application of fee changes is at least 07 days.

5. CREDIT INTEREST RATE AND INTEREST CALCULATION METHOD

- 5.1. **Credit interest rate:** **The** interest rate of the Credit Card will be notified to the Customer by Techcombank at the time of card issuance. The interest rate for calculating interest is converted at the rate of %/year (annual interest rate); a year is 365 (three hundred and sixty-five) days. Credit card interest rates may be adjusted by Techcombank when there are changes or abnormal fluctuations in the State's management policies, laws or markets or due to the characteristics of the Credit Card Product. Techcombank will notify the Cardholder of the adjusted interest rate, the time of application of the adjusted interest rate in the form of text or electronic data message including but not limited to email, SMS, notification via e-banking channels,... as prescribed by law, and posted at Techcombank's head office and/or on Techcombank's website. The adjusted interest rate takes effect from the date specified in the notice or from the date Techcombank sends the notice (if the effective date is not specified on the notice). Within 5 days from the date of Techcombank's announcement of the interest rate adjustment, if the Cardholder does not agree with the adjusted interest rate, the Cardholder is responsible for notifying Techcombank to agree to terminate the Card Issuance and Use Agreement.
- 5.2. **How to calculate interest:**
- 5.2.1 For the balance payable with interest (as prescribed in Section 5.3 below), the interest is calculated on the Cardholder's actual balance and the time of actual balance (from the date the transactions are updated in Techcombank's card management system to the end of the day preceding the date on which the Cardholder fully repays the debt). Interest is calculated on a daily basis, accrued and debited on the Statement Date. The time to determine the balance for interest calculation is the end of each day during the time of actual outstanding debt (interest calculation period).
- 5.2.3 Interest calculation formula: The interest amount of each statement period is determined according to the following formula:

$$\text{Interest amount} = \frac{\sum (\text{Actual balance} \times \text{Time of actual balance} \times \text{Interest rate})}{365}$$

- 5.3. **Regulations on interest exemption/interest collection for each type of transaction:**

Depending on the type of credit card, Techcombank will have different interest waiver/interest collection mechanisms.

5.3.1. With a DreamCard credit card:

Techcombank will collect interest on payment transactions for goods, services and cash withdrawals as soon as the Cardholder makes a transaction with a DreamCard credit card.

5.3.2. For other types of credit cards:

5.3.2.1. For payment transactions for goods and services/toll collection transactions/interest collection transactions:

- a. At the latest on the payment due date, if the Cardholder successfully pays the entire Balance at the end of the period announced on the Statement, Techcombank will waive interest for all payment transactions for goods, services/Fee Transactions/Interest Transactions incurred in the Statement Period of the Cardholder.
- b. At the latest on the payment due date, if the Cardholder fails to pay the entire Balance at the end of the period, Techcombank will calculate interest on the entire outstanding balance of payment transactions for goods, services/toll collection transactions/interest collection transactions arising in the Statement Period of the Cardholder according to the principles specified in Section 5.2 of the Terms. this condition.

5.3.2.2. For cash withdrawals:

The balance of the cash withdrawal transaction will be charged interest according to the principles specified in Section 5.2 of the Terms and Conditions on the issuance and use of this card.

5.3.3. For transactions with tracing and complaints of cardholders:

Interest and fees of tracing transactions and complaints of the Cardholder that have not been reimbursed by Techcombank in the Statement Period shall also be calculated according to the principles specified in Sections 5.1, 5.2 and 5.3. Techcombank will refund to the Cardholder the interest/fees incurred for correct tracing and complaint transactions.

6. DEBT PAYMENT

- 6.1. **Order of debt payment:** The balance will be paid in the order of priority below and in the order of transaction time updated to the system: (1) Interests and fees; (2) Cash withdrawal transactions; (3) Payment transactions for goods and services.

6.2. **Debt payment:**

- 6.2.1 Techcombank stipulates the statement date for each specific type of credit card. If the Statement Date coincides with a Saturday, Sunday or holiday, the Statement Date will be moved forward 02 working days in advance.

- 6.2.2 After the Statement Date, Techcombank will list all Cardholder transactions incurred in the Statement Period that have been updated on Techcombank's system. Foreign currency transactions are converted into Vietnamese dong (VND) at the exchange rate of the CI on the date of processing the transaction of the CI. Techcombank will collect the fee(s) incurred according to Techcombank's regulations from time to time.

- 6.2.3 The cardholder is responsible for checking and paying on time to Techcombank all arising debts stated on the Statement, at least equal to the Minimum Debt Repayment Level. Cardholders must send their enquiries related to transactions on the Statement in writing to Techcombank within 10 days from the date the Bank sends the Statement. If within that period, Techcombank does not receive the Cardholder's notice, it shall be deemed that the Cardholder agrees to pay all transactions, fees and interest incurred as shown on the Statement.

- 6.2.4 The Cardholder's debt payment is only counted as successful when Techcombank's system records the Cardholder's transaction (Techcombank receives a credit report with the actual credit amount). The payment amount received after Techcombank's working hours will be counted towards the next working day. The Cardholder's HMTD will be restored to the same amount paid by the Cardholder on the next working day.

6.2.5 In case the Cardholder registers for automatic debit in the forms prescribed by Techcombank, the Cardholder authorizes Techcombank to automatically debit and deduct money from the Cardholder's registered current account opened at Techcombank to pay the outstanding amount according to the Cardholder's automatic debit registration. Cardholders must ensure that this Registered Account always has the necessary balance for Techcombank to debit and withdraw funds between the day after the Statement Date and the Payment Due Date.

Techcombank reserves the right to automatically deduct the entire outstanding balance that the Cardholder has registered from the Registered Account at any time during the period from the Statement Date to the end of the Payment Due Date. If during this period the balance in the Registered Account is not enough for Techcombank to deduct the outstanding balance as registered by the Cardholder with Techcombank, the Cardholder shall be responsible for paying directly to Techcombank the outstanding outstanding balance and bear the arising fees and interests (if any).

6.2.6 In case the credit card is granted a limit in the form of an individual customer paying salary at Techcombank, if the customer registers for automatic deduction in the forms prescribed by Techcombank and receives the salary before the statement date, the cardholder agrees to authorize Techcombank to temporarily block part of the payment account (salary account) that the cardholder registers for automatic deduction. the amount is equal to the minimum debt repayment level or equal to the balance of the statement debt depending on the value of the customer's automatic debit registration at Techcombank. The amount that has been debited by Techcombank will be released within a maximum of 02 working days after the due date of payment in that statement period.

6.2.7 In case the Cardholder is issued a credit card as an individual customer who pays salary at Techcombank and registers for automatic debit in the forms prescribed by Techcombank, Techcombank has the right to change the Cardholder's debit account if it is detected that the account registered for debit is not the account of the Cardholder receiving periodic income from the payroll unit to Cardholders.

7. DEBT TRANSFER, INTEREST RATE EXCHANGE AND DEBT COLLECTION

7.1. Transfer of overdue debts

After 01 day from the payment due date, if the Cardholder fails to pay or pays an amount less than the Minimum Debt Payment Amount, the entire outstanding balance will be converted into overdue debt.

7.2. Application of overdue interest rate

If the Cardholder fails to pay or pays an amount less than the Minimum Repayment Amount of three consecutive Statement Periods, Techcombank is entitled to apply the overdue interest rate on the entire total outstanding balance of the Credit Card from the Fourth Statement Period. The overdue interest rate is issued by Techcombank and changed from time to time, publicly announced at Techcombank's head office and/or on Techcombank's website.

7.3. Debt collection

7.3.1 If the Cardholder fails to pay or pays an amount less than the Minimum Repayment Amount on the payment due date and there are signs that Techcombank's assessment is a decline in debt repayment capacity, Techcombank is entitled to consider temporarily locking the Card. Techcombank will terminate the temporary blocking of the Card when the Cardholder pays at least the minimum outstanding repayment amount.

7.3.2 If the Cardholder fails to pay or pays an amount less than the Minimum Repayment Amount on the Due Date of the Statement Period immediately following the Unpaid Statement Period, Techcombank reserves the right to consider temporarily blocking the Card. Techcombank will terminate the temporary blocking of the Card when the Cardholder pays at least the minimum outstanding repayment amount.

- 7.3.3 If the Cardholder fails to pay or pays an amount smaller than the Minimum Repayment Amount on the Due Date of the second Statement Period immediately following the Unpaid Statement Period, Techcombank has the right to permanently block the Card, terminate the provision of Card services, revoke the Card; carry out procedures for debt collection and handling of fixed assets.
- 7.3.4 In case the credit card balance is converted into overdue debt, the Cardholder agrees to allow Techcombank to debit/settle the accounts (including joint current accounts), deposits, and other deposited assets of the Cardholder at Techcombank to collect debts by the methods chosen by Techcombank without any additional approval from the Cardholder. In case of debiting/settling the deposits (passbook/savings card, Deposit Agreement) of the Cardholder to pay the outstanding balance, Techcombank is exempt from liability for the early termination of the deposit term of the Cardholder.
- 7.3.5 The cardholder must pay the costs incurred in connection with Techcombank's implementation of measures to recover debts such as attorney's fees, court costs, fixed asset processing fees, travel expenses, communication, copying, photocopying, notarization, document translation, preparation of procedural documents, judgment enforcement fees without supporting documents.
- 7.3.6 Upon the expiration of the Card Validity Period, if the Cardholder has not paid the entire balance, Techcombank is entitled to carry out debt recovery procedures and handle fixed assets.
- 7.3.7 The Cardholder agrees that Techcombank has the right to collect debts from the Cardholder's salary, income or from the Cardholder's agency, work unit or any other assets of the Cardholder or other assets of the Cardholder at Techcombank without the Cardholder's confirmation. The handling of assets for debt collection will be carried out in accordance with the provisions of Techcombank and the provisions of law. Techcombank has the right to make a Collection Authorization to request banks to open an account for the Cardholder to withdraw money to recover principal and interest in case the principal and interest debts of the Cardholder are converted to Overdue Debt or Overdue Interest Debt.
- 7.3.8 The Cardholder agrees that if the Cardholder incurs information/events in the cases where Techcombank is entitled to temporarily lock the card as prescribed in Clause 9.2.1(s) of these Terms and Conditions, Techcombank is entitled to take necessary actions to recover the debt as prescribed in the Terms, without notifying the Cardholder. In this case, the Cardholder agrees to allow Techcombank to take the actions specified in Article 7.3.4, Article 7.3.7 and other provisions of these Terms and Conditions to recover the debt until the outstanding balance of the Cardholder is fully recovered.
- 7.3.9 The Cardholder's outstanding balance is understood to include the principal transaction amount, interest and related fees.

8. TERMINATION OF CREDIT CARD USE

- 8.1 The Cardholder is responsible for paying all transactions before the time the Card is terminated and the arising amounts (if any) have not been updated on the Card Account according to Techcombank's notice. Techcombank will only release the fixed assets (if any) after at least 40 days from the effective date of the Cardholder's request for termination of use of the Card and the Cardholder has paid all obligations secured by fixed assets with Techcombank.
- 8.2 Upon unilateral termination of the Credit Card Issuance and Use Agreement with Techcombank, the Cardholder is responsible for returning the Card to Techcombank and at the same time must send a written notice to Techcombank or call Techcombank's call center to notify the card locking. The termination of the Credit Card Issuance and Use Agreement with Techcombank takes effect when the Cardholder pays the entire Outstanding Balance; and the traces and complaints of the Cardholder (if any) have been resolved.
- 8.3 Upon termination of the use of the Card at the request of Techcombank or at the request of the Cardholder, the entire outstanding balance will be due and the Cardholder is responsible for paying all expenses incurred up to that time. If the Cardholder has terminated the use of the Card but continues to use the Card for

transactions, the Cardholder must still be responsible for paying these transactions and the interest and fees incurred according to Techcombank's regulations.

8.4 Techcombank reserves the right to terminate the provision of Card services and/or terminate the Credit Card Issuance and Use Agreement with the Cardholder in the following cases:

- a. Cases specified in Sections 7.3.1 and 7.3.2 of this Clause and Conditions;
- b. The cardholder has spent in excess of the HMTD without Techcombank's permission;
- c. The cardholder violates the regulations on the issuance and use of Techcombank's Card, the Credit Card Issuance and Use Contract or violates the provisions of law;
- d. Techcombank detects that the documents and information provided by the Cardholder are inaccurate, untruthful or untrue;
- e. The cardholder breaches the debt repayment obligation (including principal, interest, fees and other expenses incurred) with Techcombank and/or with any other third party;
- f. Cardholders are involved in lawsuits and cases that, in Techcombank's view, may seriously affect the Cardholder's ability to repay debts;
- g. The cardholder is arrested, prosecuted, examined for penal liability or to serve a criminal judgment;
- h. The cardholder is dead or missing;
- i. The cardholder divorces or divides the common property of the husband and wife during the marriage period;
- j. Most of the cardholder's assets are distrained, blocked, and pawned;
- k. The Cardholder's fixed assets are lost, damaged, or reduced in value compared to the value of the fixed assets valued at the time of issuance of the limit according to the valuation of Techcombank/a third party;
- l. Cases related to resignation, change of income or failure to meet the conditions for using the Card as prescribed by Techcombank;
- m. Cases related to counterfeiting and risk management (including cards showing signs of fraud or violation of the law or other cases in Techcombank's assessment, cards that are lost or used for improper purposes, fraudulent transactions or violations of the Bank's policies or regulations)
- n. Cases related to resignation, change of income or failure to meet the conditions for using the Card as prescribed by Techcombank;
- o. Other events that, according to Techcombank's assessment, are likely to affect the Cardholder's ability to repay debts in full and on time (including but not limited to events: unable to contact customers, customers with debts that need attention or higher levels at other credit institutions (overdue debts, etc.).
- p. For linked credit cards, Techcombank has the right to terminate the provision of card services when the primary cardholder of the linked credit card terminates/terminates the membership status or when the cooperation program between Techcombank and the Partner is terminated/expires or in other cases as prescribed in the agreement between Techcombank and the Partner from time to time;
- q. The Cardholder has requested to permanently lock the Card, has settled all credit card balances and has not requested re-issuance of the Card within 90 days from the date of cancellation of the Card;
- r. The Cardholder fails to activate the Card within 75 days from the date of issuance of the Card;
- s. Other cases according to the regulations of Techcombank and the law.

8.5 For Cardholders who have other loans with fixed assets at Techcombank:

- a. When the Cardholder settles the loan with fixed assets before the credit card expires, Techcombank will lock the cardholder's credit card and the cardholder must settle the credit card balance before settling the loan with fixed assets.
- b. If the loan has the Cardholder's fixed assets overdue for 90 days or more, the Cardholder's credit card will be permanently locked and the Cardholder must settle the credit card balance.

9. RIGHTS AND RESPONSIBILITIES OF THE PARTIES

9.1. RIGHTS AND RESPONSIBILITIES OF CARDHOLDERS

9.1.1. Cardholder Rights

Cardholders have the following rights:

- a. The Card may be used in accordance with the provisions of Section 3 of this Terms and Conditions within the scope of the issued HMTD.
- b. To be entitled to request Techcombank to provide periodic information or to be provided with irregular information about Card transactions and balances and limits related to the use of the Card in accordance with Techcombank's regulations.
- c. Cardholders have the right to request tracing and complaining about errors and violations (if any) arising in the process of using the Card in accordance with law.
- d. Other rights as prescribed in these Terms and Conditions, Request for issuance of credit cards for individual customers and relevant provisions of law.

9.1.2. Cardholder Responsibilities

In addition to the responsibilities specified in other terms and conditions of this Terms and Conditions, the Cardholder has the following responsibilities:

- a. Provide complete and accurate documents, papers and necessary information as required by Techcombank when requesting the issuance of the Card and during the use of the Card.
- b. Use the credit card limit for the right purpose of paying for goods, services, cash withdrawal or other permitted transactions. The cardholder is fully responsible before the law for using money according to the credit card limit for improper purposes.
- c. Directly go to Techcombank to receive the Card/PIN or request Techcombank to send the Card/PIN by post to the Cardholder registered with Techcombank on the Application Form or to the Cardholder's requested address (only applicable to some special cases according to Techcombank's regulations from time to time) or authorize another person to receive the Card/PIN. The power of attorney is made in writing directly at Techcombank or must be notarized and authenticated. In case of authorizing another person to receive/activate the Card/PIN or register to receive the Card/PIN by post, the Cardholder must bear all risks that may arise, except for the case due to the fault of Techcombank. In case of receiving the Card by post or authorizing another person to receive the Card/PIN, the Cardholder must call Techcombank to confirm the receipt of the Card and request to activate it via the Call Center number provided by Techcombank in the card return envelope or send an SMS to the call center provided by Techcombank or the Cardholder directly to Techcombank's Branches/Transaction Offices or directly register via F@st i-bank/F@stMobile to request card activation.

In case the Cardholder registers to receive the PIN via e-Banking service channels, including but not limited to via SMS sent to the Cardholder's mobile phone number registered with Techcombank or via F@st-ibank, F@st Mobile services that the Cardholder participates in, the Cardholder will receive the PIN after the Card is successfully activated by following the following steps:

The cardholder's first-time PIN is valid for a short time, which is shown in the SMS content that Techcombank sends to the cardholder, or the notification on the screen of F@st Mobile, F@st-ibank... Cardholders are responsible for keeping their information confidential and exchanging new PINs at Techcombank's ATMs after receiving the PIN code for the first time before the PIN expires in accordance with Techcombank's regulations.

In case the customer activates the card through the e-Banking application, after the customer successfully activates the card, the system displays a screen allowing the customer to enter and create a PIN code and confirm the newly created PIN (the customer is required to enter 2 times, the 2nd PIN code must be the

same as the 1st PIN code), after the customer completes generating the PIN code, the system performs PIN setup for the card and displays the screen to congratulate the customer for successfully setting up the card. The PIN code initiated by the Cardholder is used in card transactions, the Cardholder is not required to change a new PIN code at Techcombank's ATMs after the first PIN code is initialized and is responsible for maintaining PIN information.

- d. Within 75 days from the date of issuance of the Card, the Cardholder is responsible for activating the Card. After this period, the Card that is not activated will be cancelled and the Cardholder will be responsible for the issuance fee and annual fee for the first year from the date of issuance of the Card.
- e. The Cardholder is responsible for sending SMS/call to Techcombank from the same mobile phone number that the Cardholder has registered with Techcombank to request to activate the Card (according to Techcombank's syntax regulations from time to time) if the Cardholder registers to activate the Card via SMS/call. Cardholders are responsible for all risks that may arise.
- f. The cardholder is responsible for managing the Card and securing the PIN. The Cardholder shall not transfer the Card or give the Card to another person for use, and shall not disclose the PIN to anyone.
- g. Sign the sample signature in the signature box on the back of the Card immediately after receiving the Card.
- h. Notify Techcombank in the fastest form when the Card is stolen, lost, reveals the PIN or there is a suspicion that the Card is being used by phone number: (84-24) 39446699/(84-24) 39449626/1800588822/1800588823, etc. or Techcombank's other hotline number posted on Techcombank's website from time to time, or any nearest Techcombank's branch/transaction office. The cardholder must re-confirm his/her notice in writing to Techcombank (if previously notified in other forms), and pay the fees according to Techcombank's regulations.
- i. The Cardholder is responsible for fully and punctually paying to Techcombank the principal, interest and fees incurred due to the use of the Card according to the Statement made and sent to the Cardholder. In case the Cardholder has made a Card Transaction but does not receive or receives the Statement late, the Cardholder is still responsible for paying the principal, interest and fees incurred due to the use of the Card as prescribed after Techcombank provides evidence of sending the Statement to the Cardholder.
- j. Immediate and unconditional reimbursement to Techcombank at Techcombank's request for amounts that the Cardholder withdraws, withdraws/overpays HMTD, transactions mistakenly credited to the Cardholder's Account, ATM and ATM complaint tracing transactions that have been advanced to the Cardholder and other erroneous transactions for which the Cardholder cannot prove ownership legal. The Cardholder agrees to allow Techcombank to automatically debit, temporarily lock and deduct money on the Cardholder's payment/deposit accounts opened at Techcombank to recover these funds without notifying the Cardholder.
- k. Do not reuse the Card that the Cardholder has notified Techcombank as stolen or lost.
- l. The Card may not be used to pay for illegal gambling payments or other illegal transactions in accordance with applicable law.
- m. Return the Card to Techcombank when: the Card that has been reported stolen or lost before is recovered; when the Card expires; when the Cardholder does not wish to continue using the Card; and other cases at the request of Techcombank.
- n. Recognize invoices and documents related to card transactions that have been recorded and provided by Techcombank's system. The Cardholder is responsible for paying for all transactions signed and/or using the Card's PIN and other transactions if Techcombank can provide proof that the Card can be transacted without the Cardholder's signature.
- o. The Primary Cardholder is responsible to Techcombank for the use of the Supplementary Cardholder's Card.

- p. Responsible for resolving conflicts with the Merchant on matters related to the Card Transaction without delaying the payment on the Payment Due Date.
- q. Use of the Card in the pre-emptive rights issued by Techcombank, unless Techcombank agrees to allow the Cardholder to use the card in excess of the limit and the cardholder must be responsible for paying the fee according to Techcombank's regulations when using the pre-emptive rights card in excess of the issued pre-emptive rights.
- r. Payment of the disputed card transaction amount and fees incurred in accordance with the regulations of the International Credit Organization when the dispute is brought to International Arbitration and the International Arbitration shall judge the Cardholder to lose the lawsuit.
- s. Immediately notify Techcombank in writing of any changes to the information provided in the Request for International Credit Card Issuance for Individual Customers or other information as requested by Techcombank.
- t. Comply with Techcombank's current regulations and policies related to credit extension and in case these regulations and policies change, the Cardholder commits to strictly comply with such changed regulations and policies on time as notified by Techcombank.
- u. Settle all credit card balances issued based on the loan with fixed assets (if any) in case the Cardholder settles the loan with fixed assets and leaves the last fixed assets of the Cardholder at Techcombank.
- v. The Cardholder agrees that for requests for tracing complaints with the Card service, the Cardholder is responsible for making a written request (if any) within 60 days from the date the transaction arises or from the date the Cardholder's rights and obligations are violated by one of the following methods: (i) via telephone call center (with recording, operating 24/24 hours a day, 7/7 days a week) or in writing at Techcombank's transaction points. In case the Cardholder sends a request for tracing or complaint through Techcombank's call center, the Cardholder is responsible for supplementing the written request for tracing and complaint according to Techcombank's form within 03 working days as a basis for officially handling the request for tracing and complaint. Beyond the above time limit, Techcombank will continue to support the settlement of the complaint tracing but the result of the complaint tracing will depend on the goodwill of other relevant partners and the Cardholder will have to bear all damages incurred due to the late complaint. Techcombank will refuse to accept tracing requests if within 60 days from the date of the transaction the Cardholder does not send a tracing request to Techcombank.
- w. In case the customer does not comply with Techcombank's recommendations on card security, the customer will be responsible for all risks (if any)
- x. Other responsibilities as prescribed in these Terms and Conditions and relevant provisions of law.

9.2. RIGHTS AND RESPONSIBILITIES OF TECHCOMBANK

9.2.1. Rights of Techcombank

In addition to other rights specified in these Terms and Conditions, Techcombank has the following rights:

- a. Techcombank is exempt from liability in case the processing system, transmission system, etc. malfunction, or for any reason beyond Techcombank's control
- b. Refuse to license card transactions that are not legal or valid according to the regulations of Techcombank and the law or in cases beyond the control of Techcombank.
- c. The Cardholder is required to provide all necessary information and documents when applying for the issuance of the Card and during the use of the Card.
- d. Techcombank reserves the right to refuse to process or pay for Card Transactions in the following cases:
 - (i) Use the Card to perform card transactions prohibited by Techcombank and the law;
 - (ii) The card has been notified by the cardholder to be stolen or lost;
 - (iii) Expired card;

- (iv) The card is locked;
 - (v) The remaining credit limit (if any) is insufficient to pay the payment or withdrawal;
 - (vi) The Cardholder violates the provisions of these Terms and Conditions or the agreements between the Cardholder and Techcombank whereby the Card is refused payment;
 - (vii) Cards that are counterfeit or are related to fraudulent transactions;
 - (viii) The card shall be terminated in accordance with the provisions of Section 8.4, Article 8 of these Terms and Conditions.
- e. Collect information from other organizations about Cardholders.
 - f. Provide competent agencies and other authorized organizations and individuals with information about cardholders, PIN numbers, statements and card transactions in accordance with law; provide card transaction information of the Cardholder via the Call Center when the requester declares the correct information of the Cardholder registered in the Application for International Credit Card Issuance for Individual Customers.
 - g. The right to actively increase or decrease the pre-emptive rights and/or change the cardholder's card tier according to Techcombank's regulations.
 - h. The right to lock the Card/features on the Card upon receipt of a notification that the Card is stolen, lost, or the PIN is revealed or the Bank suspects that the Card/Card information is being abused according to the phone number/email address agreed in the Terms and Conditions for issuance and use of this Card and phone calls from Techcombank via hotline: (84-24) 39446699/(84-24) 39449626/1800588822/1800588823.
 - i. Revoke the Card at any time by notifying the Cardholder of this revocation or through credit institutions or merchants in cases where the Cardholder violates the provisions of law, Techcombank, of the credit institution or violates the agreements in these Terms and Conditions, or cases of suspected counterfeit or counterfeit cards. In this case, Techcombank is exempt from any liability for any damage to the honor and reputation of the Cardholder in revoking the Card.
 - j. Debiting the Account for the value of all Card Transactions, fees and interests incurred in connection with the issuance, use and payment of the Card according to the fee schedule prescribed by Techcombank from time to time in accordance with the provisions of law and the agreement in this Terms and Conditions.
 - k. Request the Cardholder to pay the Card Transaction and any interest and fees incurred related to the issuance, use and payment of the Card.
 - l. Techcombank is not responsible for any case where the Card is rejected by the Merchant. At the same time, it is not responsible for the supply of goods and services paid for by the Card and is entitled to debit to the account the value of transactions paid by the Card regardless of whether the goods or services are delivered, received or performed or not.
 - m. To be entitled to request the Cardholder to use all assets and revenues of the Cardholder's individuals and families; Request the cardholder's assets, the cardholder's family and cardholder's members to transfer to Techcombank for payment and reimbursement of principal, interest and fees, for other fees incurred by the cardholder; The Cardholder is entitled to record all telephone exchanges and/or any verbal information between the Cardholder and Techcombank during the use of the Card.
 - n. To be entitled to use the fixed assets of other loans of the Cardholder at Techcombank to collect debts for credit card loans when the Cardholder's credit card balance is converted into overdue debts.
 - o. Have the right to contact the cardholder's spouse/reference person that the cardholder has filled in the card issuance application form in case of necessity.
 - p. In the case of issuance of a Linked Credit Card, Techcombank has the right to provide the Cardholder's information (including but not limited to personal information, Card issuance information, Cardholder's card

transaction information, etc.) to the Partner for the purpose of providing added value to the Cardholder under the Partner's program.

- q. The right to use the latest information declared by the Cardholder to update all registration services at Techcombank.
- r. The Cardholder is entitled to temporarily block the Credit Card until the Cardholder submits the application for opening the Card in accordance with Techcombank's regulations in each period in case the Cardholder settles the loan with fixed assets and releases the final fixed assets at Techcombank.
- s. The Cardholder has the right to proactively block the Cardholder's Credit Card in the following cases: (i) related to fraud and risk management (including cards showing signs of fraud or violation of the law or other cases in Techcombank's assessment, lost or used for improper purposes, short transactions or violations of the Bank's policies or regulations); and (ii) according to Techcombank's assessment and consideration, it is likely to affect the Cardholder's ability to repay debts in full and on time (including but not limited to events: unable to contact customers, customers refusing to pay, customers with debts that need attention or higher levels at other credit institutions (overdue debts, etc.)).
- t. Techcombank reserves the right to actively cancel the customer's card if the customer does not receive the card/the card delivery party is unable to contact the customer to deliver the card/delivery card unsuccessfully and it will be refunded by Techcombank's card delivery partner.
- u. For credit cards issued in the form of individual customers paying salaries at Techcombank, Techcombank has the right to lock/temporarily block the Cardholder's credit card and take measures to recover loan debts in case the cardholder's payroll unit has signs according to Techcombank's assessment that may affect the source of income and the ability to repay debts in full. punctuality of the cardholder (late payment of salary, unsecured credit history, suspension of salary payment through Techcombank, difficulties in production and business, etc.)
- v. The right to proactively suspend card transactions by electronic means with customers who have not completed the comparison of biometric information as prescribed in Circular 18/2024/TT-NHNN.
- w. The right to actively suspend card transactions with customers whose identity documents and documents proving the customer's residence in Vietnam have expired.
- x. Other rights as prescribed in these Terms and Conditions and relevant provisions of law.

9.2.2. Techcombank's Responsibilities

Techcombank has the following responsibilities:

- a. Comply with the regulations on Card Issuance and Payment of Vietnamese law and international institutions.
- b. Confidentiality of information related to the Cardholder in accordance with the provisions of law and only provide this information in cases in accordance with the provisions of law and agreement with the Cardholder.
- c. Settle the Cardholder's requests for tracing and complaints related to the use of the Card in accordance with the provisions of law and international institutions.
- d. Lock the Card within 2 working hours from the receipt of a written notification or by call to the Cardholder's Techcombank call center about the Card being lost, stolen or the PIN has been exposed.
- e. Techcombank will be responsible for transactions related to the Card that have been notified by the Cardholder of the theft or loss of the Card after 5 working days from the date of receipt of the Cardholder's written notice.
- f. For the deposit to increase the temporary pre-emptive rights, Techcombank will release the deposit after 40 days from the date the temporary pre-emptive rights expire and the cardholder has fully paid the card transactions and the interest and fees related to the pre-emptive rights are increased.

- g. Techcombank must send a notice to the Cardholder or notice on Techcombank's website at least 03 days in advance when changing or stopping the provision of services. All information is considered to have been received by the Cardholder within 03 days from the time it is posted on the website or other forms chosen by Techcombank.
- h. Techcombank must send a notice to the Cardholder or notice on Techcombank's website at least 07 days in advance when changing the Card Service Fee Schedule. All information is considered as received by the Cardholder within 07 days from the time it is posted on the website or other forms selected by Techcombank.
- i. Send the Statement to the Cardholder who issues the Card according to the payroll project via mobile phone or email, the electronic statement query portal.
- j. Refund the positive amount on the Cardholder's credit card account after the Cardholder has fulfilled all debt repayment obligations to Techcombank in the following cases:
 - (i) The cardholder sends a request to request the bank to refund the positive amount on the credit card account;
 - (ii) After 3 months from the date of permanent card locking, Techcombank will review and refund the positive amount on the credit card account to the Cardholder.
- k. Other responsibilities as prescribed in the Terms and Conditions on issuance and use of this card and relevant provisions of law.

9.3. CARDHOLDER'S COMMITMENT

- a. Commit not to make transactions contrary to the laws of the Socialist Republic of Vietnam or the host country where the Cardholder uses the Card for transactions.
- b. Undertake to be responsible for all transactions made with the Card before Techcombank receives written notification of the Card being stolen, lost, exposed PIN or suspected of being exploited, including but not limited to fraudulent transactions and/or forged signatures by any person.
- c. Agree and authorize Techcombank to seek information related to the Cardholder from any third party in accordance with Techcombank's regulations, including the provision/receipt of Cardholder's credit information (including data, figures, relevant facts of the Cardholder) to/from the Credit Information Company that Techcombank participates in (VIETNAM CREDIT INFORMATION JOINT STOCK COMPANY (PCB), enterprise code 0102547296, first registered on 27/11/2007 and other credit information companies as notified by Techcombank from time to time) to ensure compliance with the provisions of law. In case the credit information company has its Certificate revoked, Techcombank will stop providing the Cardholder's credit information to the credit information company and Techcombank agrees that the Cardholder's credit information at the credit information company shall be processed in accordance with the Government's regulations on the provision of credit information services. Techcombank is responsible for notifying the Cardholder of the Cardholder's credit information processing within a maximum of 10 working days from the date Techcombank receives the credit information company's notice of the credit information processing plan.
- d. Agree that Techcombank has the right to decide to provide Card transaction information to a third party providing services to support Card activities (such as statement printing and sending services or other services selected by Techcombank not contrary to the provisions of Vietnamese law) or a third party to cooperate with Techcombank in expanding and adding more value to the use of the Card to the cardholder or the police or the State Bank for investigation of the transaction in accordance with Vietnamese law.
- e. Agree and authorize Techcombank to provide information related to the Cardholder and this Agreement to third parties who are individuals and organizations with functions for the purpose of performing debt collection, debt trading, debt settlement, auditing, consulting, credit information activities without notifying

- the Cardholder about this. For clarification, The Cardholder agrees that the third party receiving the Cardholder's information and this Contract has the function of debt collection, debt trading, debt settlement is allowed to provide this information to any individual or organization to carry out debt collection activities.
- f. Agree and allow Techcombank to provide information related to the Cardholder and this Agreement to third parties who are individuals and organizations with functions for the purpose of providing, introducing and supporting the Cardholder with information related to the product, Techcombank's services without notifying the Cardholder about this.
 - g. In case of issuance of a Linked Credit Card, the Cardholder agrees to provide Techcombank with the Cardholder's information (including but not limited to personal information, Card issuance information, Cardholder's card transaction information, etc.) to the Partner for the purpose of providing added value to the Cardholder in the Partner's program.
 - h. The cardholder commits to use the priority monthly income to repay the balance of the statement debt. The cardholder authorizing Techcombank has the full right to deduct the cardholder's salary and monthly income from the cardholder's current account at Techcombank or directly contact to receive money from the cardholder's unit or agency to repay the debt. The cardholder authorizes the agency/unit that the cardholder is currently working to deduct salary, monthly income and other income (if any) to pay Techcombank. This authorization will only expire when the Cardholder has paid all principal and interest arising at Techcombank.
 - i. In case of not continuing to work at the current agency, the Cardholder commits to notify Techcombank 07 days in advance from the date of resignation.
 - j. The Cardholder acknowledges, irrevocably and is responsible for payment of all transactions made in accordance with Techcombank's regulations on the payment process by Card via the Internet and/or using the Cardholder's signature and electronic signature without cancellation or denial. refuse, change, withdraw from trading for any reason; Undertake to assume all risks associated with the transaction that has been made.
 - k. For transactions made by electronic means, the Cardholder is fully aware of the risks that may be encountered when making transactions, commits that the activities that take place due to his/her electronic documents are made in accordance with regulations and is responsible for the damages that occur due to accidental or intentional disclosure of electronic signatures. leading to being taken advantage of by crooks.
 - l. The cardholder undertakes to waive the right to sue when the transaction may be interrupted, unable to be performed due to network failures, transmission lines, systems, electricity, or other technical errors of the service provider or Techcombank, or due to incidents caused by weather causes, earthquakes, natural disasters...
 - m. In case the Cardholder makes payment by Card via the Internet to pay service providers (RESIDENT), the Cardholder commits to be responsible for the implementation of the payment process as agreed with the RESIDENT, and is responsible for transactions that provide inaccurate Service Codes, Payment code and other relevant information; self-settling disputes related to the provision of services of the Employer in terms of payment amount, payment code, payment time; be responsible for transactions sent multiple times and other issues between the Cardholder and the Borrower at all times, including before, during and after Techcombank has transferred funds to the Borrower's account.
 - n. With card transactions such as MOTO transactions and other transactions such as transactions on the internet... The Cardholder agrees that the Cardholder may be required to register with Techcombank to perform these transactions or these transactions may be made immediately after the Cardholder agrees to activate the Card, depending on Techcombank's regulations from time to time. The cardholder undertakes to be aware of the risks and agrees if Techcombank opens this feature without the cardholder's registration

- o. The cardholder commits to use the Card only in accordance with the payment process by Internet Card prescribed by Techcombank and use the Card within the allowable balance and within the payment limit as prescribed by Techcombank in each period.
- p. If registering for the issuance of an associated credit card, the cardholder agrees to all regulations of Techcombank on the issuance and use of associated credit cards.
- q. In the event that the Cardholder requests assistance from Techcombank (e.g., adjustment of card usage limit, temporary card locking, card cancellation , etc.) through the following methods, including but not limited to the Cardholder's direct phone call to Techcombank (only applicable to cases of telephone assistance according to Techcombank's internal regulations from time to time), Cardholders directly go to Techcombank's branches/transaction offices, cardholders directly register via i-bank/F@stMobile F@st, etc. The Cardholder must take all responsibility for the services that the Cardholder requests from Techcombank to change.
- r. Agree for Techcombank to confirm all or part of the online card payment transaction in case of using the confirmation form for online card payment transaction according to EMV 3-D Secure standard. The online card transaction confirmation will be in accordance with Techcombank's relevant regulations from time to time.

10. INSURANCE-RELATED REGULATIONS FOR INSURED CREDIT CARDS

10.1. COMMITMENT OF THE MAIN CARDHOLDER OF THE INSURED CREDIT CARD:

- a. Agree to allow Techcombank, doctors, medical organizations and other relevant organizations and individuals to provide the insurance company and reinsurance companies with information related to the performance of the insurance contract concluded on the basis of the application for issuance of an international credit card card use contract.
- b. After successfully opening the Card, depending on the type of Card, the main cardholder of the insured credit card will become the Insured Person according to the type of insurance product purchased by Techcombank from time to time.
- c. In case of arising risks under the insurer's insurance liability, the primary cardholder of the insured credit card agrees to let Techcombank become the beneficiary/beneficiary of the insurance benefit. Techcombank will use this Insurance Benefit to pay debts that the Cardholder has not paid to Techcombank (if any).

10.2. DESIGNATION OF BENEFICIARIES

Techcombank and the Primary Cardholder of the Insured Credit Card mutually agree to designate Techcombank as the first beneficiary in the event that the insurance event occurs to the Primary Cardholder covered by the insurance product, and will not sue the Insurer after the insurance benefits are paid to Techcombank by the Insurer. Accordingly, the insurance company will pay the insurance benefit to Techcombank and Techcombank is entitled to use this insurance benefit to pay the debts that the main cardholder of the insured credit card has not paid to Techcombank (if any). After deduction of debts, if the insurance benefits are insufficient compared to the debts that the primary cardholder of the insured credit card must pay to Techcombank, the responsibility to continue to repay the debt in full and on time and pay the arising fees and interests (if any) shall comply with the provisions of Techcombank and the law; if the insurance benefits are more than the debts that the Primary Cardholder of the insured credit card must pay to Techcombank, Techcombank is responsible for refunding the remaining insurance benefits in accordance with the provisions of Techcombank and the law.

10.3. AUTHORIZATION TO RECEIVE INSURANCE BENEFITS

In case the insurance company settles the insurance benefits when the insurance event occurs, the primary cardholder of the insured credit card agrees to authorize Techcombank to receive all these insurance benefits on behalf of the primary cardholder of the insured credit card with the following agreements:

- a. This authorization is valid during the credit card validity period and throughout the validity period of the insurance policy in relation to each primary cardholder of the insured credit card;
- b. This authorization may not be amended, supplemented, replaced, canceled, or terminated during the validity period of the insurance policy related to each primary cardholder of the insured credit card.
- c. Techcombank is entitled to use this Insurance Benefit to pay debts that the Primary Cardholder of the insured credit card has not paid to Techcombank (if any). After deducting the debts, if the insurance benefits are insufficient compared to the debts that the Insured Credit Card Cardholder must pay to Techcombank, the Insured Credit Card Cardholder is responsible for continuing to make full and timely debt repayment and payment of fees, interest incurred (if any); if the insurance benefits are more than the debts that the Primary Cardholder of the insured credit card must pay to Techcombank, Techcombank shall be responsible for reimbursing the Principal Cardholder of the insured credit card the remaining amount in accordance with the provisions of Techcombank and the law.
- d. In order to settle the outstanding debts of the credit cardholder, Techcombank reserves the right to temporarily lock/block the account of the primary cardholder in case of necessity.

10.4. SETTLEMENT OF INSURANCE BENEFITS

- a. In case an insurance event occurs and falls within the coverage of the insurance contract issued to the Primary Cardholder of the insured credit card, the Claimant must notify Techcombank or the Insurance Company, within 30 days from the occurrence of the insurance event. Techcombank and the Insurance Company are responsible for coordinating to settle insurance benefits for the Claimant according to the agreement between Techcombank and the Insurance Company.
- b. Techcombank and the Insurance Company are independently responsible for the main cardholder of the insured credit card in exercising their rights and obligations. Techcombank is not responsible for answering/settling complaints from Cardholders related to the performance of insurance obligations of the Insurance Company.

11. OTHER TERMS

11.1. OTHER REGULATIONS

- a. If the Cardholder uses the Card to reserve services but does not use such services and does not notify the cancellation of the service within the time limit specified by the Cardholder, the Cardholder may have to pay part or all of the service value, relevant taxes and fees as prescribed by each Merchant. Techcombank reserves the right to debit the Cardholder's Account in these cases.
- b. If Techcombank considers that the Cardholder still fully meets the conditions for issuance of credit cards according to Techcombank's regulations, Techcombank may consider carrying out procedures for re-issuance of credit cards to replace expired credit cards for Cardholders in accordance with Techcombank's conditions and regulations in each period in the following cases:
 - (i) Within 60 days prior to the expiry date of the Card, Techcombank does not receive any notice of discontinuation of the Card from the Cardholder; or
 - (ii) Within 90 days after the card expiry date, Techcombank will receive a notice from the Cardholder requesting the re-issuance of a credit card to replace the expired credit card.
- c. In case Techcombank considers that the re-issuance of a credit card to replace the expired credit card has satisfied the conditions specified at Point b above, the Cardholder will automatically accept the Credit Card Issuance Request that the Cardholder has previously signed together with the Terms, This attachment will automatically be renewed according to the new validity period of the replacement credit card. Any other request by the Cardholder regarding the reissuance and use of the Card must be made in writing or in a form permitted by law or agreed upon by both parties. Techcombank will not be responsible for any damages incurred due to failure to comply with the Cardholder's requirements through these methods.

- d. Unless Techcombank has a written waiver of its powers, powers or measures, any failure or delay in exercising any of Techcombank's powers, powers or measures shall not be deemed to be a total or partial waiver of its powers. power or that measure.
- e. Increased costs: When an event arises that increases Techcombank's costs, Techcombank will calculate and notify the Cardholder of the additional costs that the Cardholder is obliged to pay. Within 15 days from the date of notification, the Cardholder is obliged to reimburse Techcombank for the amount of additional expenses specified in the Notice. In case the Cardholder is late in paying this Additional Expense Amount, the Cardholder will have to pay interest on this late payment amount according to the late payment penalty interest, the interest calculation method specified in the Terms and Conditions on issuance and use of this card.
- f. For Vietnam Airlines Techcombank Visa linked cards, the maximum time limit for mileage claims is 120 days from the date of the transaction.
- g. The cashback/point accumulation for cards with cashback/point accumulation feature for customers is carried out in accordance with Techcombank's regulations from time to time and posted on the Bank's official website in chi:www.techcombank.com. The cashback/point accumulation feature is an added value that Techcombank provides to Cardholders for a specific type of Card, therefore, at any time, Techcombank reserves the right to cancel, change or adjust the contents related to this feature. Techcombank will notify the cancellation/change/adjustment of the contents related to the cashback/point accumulation feature on Techcombank's website and/or send a notice to the Cardholder via one of the following means: email, landline, SMS via the Cardholder's mobile phone, etc. the corresponding Service screen or notify in such other form as Techcombank deems appropriate. Changes, amendments, adjustments will be effective on the date specified in the notice.

Card transactions that are not eligible for refund are card transactions with signs of profiteering, misuse of cards, short trading, etc.

In case Techcombank suspects that the card transaction is not refundable, Techcombank has the right to request the Cardholder to provide invoices and documents related to the transaction to prove that the Cardholder's transaction is the purchase and sale of goods and services in accordance with the provisions of the Law and Techcombank's refund conditions. Cardholders shall supplement valid documents/VAT invoices/invoices purchased from tax authorities for Techcombank within 05 working days at Techcombank's transaction locations from the date of Techcombank's announcement. In case the Cardholder supplements documents/invoices after the required time, Techcombank reserves the right to refuse the refund/point accumulation and recover the value of the cashback/point accumulation transactions that have been paid by Techcombank or the points that have been accumulated.

Techcombank reserves the right to deduct or debit the value of cashback/point accumulation transactions on the cardholder's credit card account at Techcombank that are not recognized by Techcombank in case the cardholder fails to provide relevant invoices and documents or related invoices and documents provided by the cardholder are not in accordance with Techcombank's regulations.

- h. force majeure events. Force majeure means events that occur beyond the Bank's control, cannot be foreseen and cannot be prevented, are the direct cause of loss and damage to the Customer and hinder the Bank's ability to perform its obligations to the Customer. The Bank will not be liable for Force Majeure Events e.g. unavailability of funds or any losses incurred by the Customer due to restrictions on the ability to transfer or transfer funds, complaints, mandatory transfers, changes in laws (e.g. foreign exchange regulations), the suspension of operations, expropriation, war or civil war, natural disasters, epidemics, strikes, strikes or other causes beyond the Bank's control, regardless of whether arising within or outside Vietnam or wherever funds are deposited or may be transferred.

11.2. AMENDMENTS AND SUPPLEMENTS

- a. Techcombank reserves the right to amend and supplement the contents of the Terms and Conditions on the issuance and use of this card by sending a written notice to the Cardholder or a notice on Techcombank's website. These amendments and supplements take effect from the date specified in the notice or from the date Techcombank sends the notice (if the effective date is not specified on the notice).
- b. Within 5 days from the date on which Techcombank announces the amendment and supplementation of these Terms and Conditions, if the Cardholder does not agree with the amendments and supplements made by Techcombank, the Cardholder is responsible for notifying Techcombank to agree to terminate the Contract for issuance and use of this card.
- c. If the Cardholder continues to use the Card after 5 days from the date of Techcombank's announcement of the amendment and supplementation of the Terms and Conditions, it is understood that the Cardholder fully accepts such amendments and supplements.

11.3. LAW GOVERNING AND SETTLEMENT OF DISPUTES

- a. The terms and conditions for issuance and use of this card are governed by the laws of the Socialist Republic of Vietnam and regulations on the issuance, use and payment of international cards.
- b. If there is any dispute arising or related to the interpretation of the terms as well as the performance of the Card Issuance and Use Agreement between the Cardholder and Techcombank, it will first be resolved through negotiation and mediation. In case of unsuccessful conciliation, the parties have the right to bring the dispute to a competent court in Vietnam for settlement.

11.4. VALIDITY PERIOD AND ENFORCEMENT PROVISIONS

- a. Terms and conditions on issuance and use of this card shall apply to the Cardholder from the date the Cardholder's Card is activated by Techcombank until the Cardholder fulfills all payment obligations under the Offer Card Issuance Agreement or within 90 days after the card expiry date but Techcombank does not receive the Cardholder's notice of the request to reissue a replacement card, whichever occurs later.
- b. Documents attached to these Terms and Conditions or for the implementation of the Terms and Conditions on issuance and use of this card (Request for issuance of international credit cards, Confirmation letter of working unit, Security contract, Statement, Fee schedule for issuance and use of the Card, The application/request for increase/decrease of the Credit Limit, Terms and Conditions on account opening and use of account services at Techcombank, other requests for assistance from the Cardholder via Techcombank Call Center, etc., are an integral part of these Terms and Conditions and all of these documents constitute the Credit Card Issuance and Use Agreement.
- c. The cardholder confirms that he has read, understood and agreed to these Terms and Conditions, the Terms and Conditions on account opening and using account services at Techcombank, which have been accurately and fully explained by Techcombank about the contents before signing. The contract for issuance and use of credit cards is made in Vietnamese. If a foreign party participates, the parties agree to use the common foreign language version together with the Vietnamese version. In case of content conflict between the Vietnamese version and the foreign language, the Vietnamese version shall be valid.
- d. Cardholders can refer to the content of these Terms and Conditions on Techcombank's website.